Landlord company’s position

Authority to sign a winter lease

Reconstructed exercise document. Not an original case record.

Unofficial English reconstruction of a Swiss judgment in German

D02-P01

The landlord treats the winter lease as binding on the tenant company. It had sent a countersigned contract and received it back with a covering letter dated 20 November 2013, signed by the employee.

D02-P02

The landlord relies on the email exchange of 13 November 2013 as evidence that the managing director authorised the employee to sign. Its position is that the employee signed for the company, even though she used the director’s name.

D02-P03

After receiving a cancellation request, the landlord stated that a fixed-term lease had been concluded and could not be terminated in that way. The scope of authority and the effect of the later communication remain separate questions.